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IN THE CIRCUIT COURT OF THE FOURTH JUDICIAL CIRCUIT, IN AND FOR DUVAL COUNTY, FLORIDA

STEFEN WYNN,

Plaintiff,

v.

CITY OF NEPTUNE BEACH,

Defendant.
_____/

CASE NO: 23-CA-008801
FLA BAR NO.: 0739685

PLAINTIFF'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS, ELECTRONICALLY STORED INFORMATION AND TANGIBLE THINGS TO DEFENDANT

Plaintiff, pursuant to rule CIV.P. 1.350, Plaintiff demands that you produce for inspection and copying all documents sought herein on or before November 14, 2024.

All documents responsive to these requests must be produced on CD or paper, or uploaded for immediate access, to Marie A. Mattox, 203 North Gadsden Street, Tallahassee FL 32301, or uploaded for immediate access by Plaintiff.

DOCUMENTS

1. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the personnel, disciplinary, supervisor, EEO and HR file Defendant maintained on Plaintiff.

2. The documents, electronically-stored information and tangible things in your possession, custody or control used to discipline, counsel or correct Plaintiff at any time during Plaintiff's employment.

3. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the complete disciplinary and counseling for each person who, during the last 180 days of Plaintiff's employment, was in Plaintiff's upward chain of command.

ACCEPTED: DUVAL COUNTY, JODY PHILLIPS, CLERK, 12/10/2024 09:52:02 AM

4. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the budget of Defendant's police department.

5. The documents, electronically-stored information and tangible things in your possession, custody or control constituting all expenditures by Defendant's police department.

6. The documents, electronically-stored information and tangible things in your possession, custody or control showing poor job performance, insubordinate behavior or other misconduct of any kind by Plaintiff.

7. The documents, electronically-stored information and tangible things in your possession, custody or control constituting counseling, discipline or other corrective action of any kind relating to Plaintiff.

8. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the position descriptions for any position sought or held by Plaintiff during Plaintiff's employment, and any document describing the duties of such positions, even if not a formal position description.

9. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the performance evaluations for Plaintiff.

10. The documents, electronically-stored information and tangible things in your possession, custody or control supporting any warning, discipline or evaluation of Plaintiff.

11. The documents, electronically-stored information and tangible things in your possession, custody or control upon which any evaluation of Plaintiff was based.

12. The documents, electronically-stored information and tangible things in your possession, custody or control used by Defendant in issuing any warning or counseling or discipline to Plaintiff.

13. The documents, electronically-stored information and tangible things in your possession, custody or control showing or regarding complaints about Plaintiff.

14. The documents, electronically-stored information and tangible things in your possession, custody or control showing awards, bonuses, praises or other compliments for Plaintiff's work.

15. The documents, electronically-stored information and tangible things in your possession, custody or control supporting any allegation in Plaintiff's Complaint.

16. The documents, electronically-stored information and tangible things in your possession, custody or control undermining any allegation in Plaintiff's Complaint.

17. The documents, electronically-stored information and tangible things in your possession, custody or control supporting each and every denial in Defendant's Answer.

18. The documents, electronically-stored information and tangible things in your possession, custody or control undermining or contradicting each and every denial in the Answer.

19. The documents, electronically-stored information and tangible things in your possession, custody or control supporting each and every fact-based Affirmative Defense pled by Defendant.

20. The documents, electronically-stored information and tangible things in your possession, custody or control undermining or contradicting each and every Affirmative Defense.

21. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the investigative files on Plaintiff's complaints about harassment and/or discrimination.

22. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the documents in possession of Defendant's EEO and/or Personnel Office regarding Plaintiff.

23. The documents, electronically-stored information and tangible things in your possession, custody or control constituting all financial audits on Defendant from January 6, 2020, to the present.

24. The documents, electronically-stored information and tangible things in your possession, custody or control showing any actual, claimed or perceived deficiency in Plaintiff's job performance during Plaintiff's employment.

25. The documents, electronically-stored information and tangible things in your possession, custody or control concerning Plaintiff's complaints about discrimination, harassment and/or retaliation, or any other complaint by Plaintiff that has been documented by Defendant.

26. The E-mails on Defendant's computer systems, or archived, that contain Plaintiff's first name, last name, or first and last name in any portion of the E-mail (e.g, in the To, From, cc/bcc or Subject/Re lines; in the body of the E-mail; or in any attachment to the E-mail). This is limited to emails during the last 60 days of Plaintiff's employment.

27. The documents, electronically-stored information and tangible things in your possession, custody or control constituting your investigative work product.

28. The documents, electronically-stored information and tangible things in your possession, custody or control constituting your investigative work product and investigative findings into Plaintiff's complaint of suspected fraud submitted to Defendant on March 15, 2022.

29. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the minutes of all meetings held by Defendant's Finance Committee. The time period of this request is from January 6, 2020, to the present.

30. The documents, electronically-stored information and tangible things in your possession, custody or control that shows all budgets and expenditures from Defendant's police department from January 6, 2020, to the present.

31. The documents, electronically-stored information and tangible things in your possession, custody or control that constitutes Defendant's procurement policy related to funding for Defendant's police department. This includes all amendments and/or supplements made to the policy. The time period of this request is from January 6, 2020, to the present.

32. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the training materials provided to Plaintiff during Plaintiff's employment, e.g., to assist Plaintiff in performing the functions of Plaintiff's position.

33. The documents, electronically-stored information and tangible things in your possession, custody or control relating to Plaintiff's claim for unemployment compensation, if any.

34. The documents, electronically-stored information and tangible things in your possession, custody or control showing the dates and hours worked by Plaintiff during Plaintiff's employment. This is limited to the last 180 days of his employment.

35. The documents, electronically-stored information and tangible things in your possession, custody or control showing the identity and circumstances of any employee other than Plaintiff who you claim engaged in the same actions or failure to act as Plaintiff and who you claim suffered the same or worse adverse employment action than Plaintiff.

36. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the employee handbook in effect during the last three years of Plaintiff's employment, and all amendments thereto during Plaintiff's employment.

37. The documents, electronically-stored information and tangible things in your possession, custody or control showing how Defendant evaluates the job performance of individuals in Plaintiff's position.

38. The documents, electronically-stored information and tangible things in your possession, custody or control showing the internal complaints of gender discrimination, harassment, or retaliation made by Plaintiff during his employment.

39. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the complaints made by employees against the school where Defendant reasonably understood the complaint to include at least one claim of discrimination, harassment, or retaliation. This request is limited to the period beginning January 6, 2020, to the present. This requests also seeks documents pertaining to the complaints that show (1) the identities, gender and job titles of each such employee, (2) the substance of their complaints, including the dates made and the person or persons whose conduct triggered the complaint, (3) the person to whom the complaints were made, (4) the actions, if any, taken by Defendant in response, and (5) the last-known status of the employee who made the complaint, specifically (a) whether after making the complaint they quit or were fired, (b) the reasons for terminations for those who were separated, (c) whether any were offered the opportunity to resign in lieu of termination, and (d) their date of last employment.

40. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the contents of the notebook maintained by anyone regarding workplace discrimination and harassment

41. The documents, electronically-stored information and tangible things in your possession, custody or control constituting emails to or from Lauren Key, Defendant's Finance Committee, Purvis Gray, Michael Key, Richard Pike, Elaine Brown, during the last 30 days of Plaintiff's employment, and during the 30 days that followed his separation, where the email in any field or in any attachment contains the words Stefen, Wynn, or both.

42. As it relates to Plaintiff's job title during her employment, Defendant's organizational chart showing the location within the organization of his position before he arrived and whether it had different duties, responsibilities, and titles, and the organizational chart after his departure showing the same thing.

43. The documents, electronically-stored information and tangible things in your possession, custody or control upon which Defendant bases its fact-based affirmative defense asserted by Defendant.

44. The documents, electronically-stored information, and tangible things, constituting statements by, or communications to or from, any of the following persons where (a) the statement or communication mentions Plaintiff by first name, last name, or both; and (b) concerns Plaintiff's job performance, complaints of discrimination, or termination: Elaine Brown and Lauren Key.

45. The documents, electronically-stored information, and tangible things, constituting affidavits or deposition transcripts or affidavits given by any of the following persons in any prior lawsuit where Defendant or one of its corporate affiliates was a party: Lauren Key, Michael Key, Richard Pike, and/or Elaine Brown.

46. The documents, electronically-stored information and tangible things in your possession, custody or control showing the education and training given specifically to Plaintiff's immediate supervisor(s) during the period January 6, 2020 to the present on unlawful employment practices, including whistleblower retaliation.

47. The documents, electronically-stored information and tangible things in your possession, custody or control, including audiotapes and complete files, concerning any claim by Plaintiff for Social Security benefits, unemployment compensation or other medically-related benefits.

48. The documents, electronically-stored information and tangible things in your possession, custody or control reflecting the financial or dollar value of each component of Plaintiff's compensation during Plaintiff's employment (e.g., Plaintiff's base salary; the value of any insurance benefits Plaintiff received; retirement benefits; leave benefits; etc.).

49. The documents, electronically-stored information and tangible things in your possession, custody or control Defendant has received through a public records request, Freedom of Information Act request, or other request to any third party related to Plaintiff.

50. The documents, electronically-stored information and tangible things in your possession, custody or control between any employees, officers, or directors of Defendant, past and/or present, regarding Plaintiff.

51. The documents, electronically-stored information and tangible things in your possession, custody or control constituting a diary, pocket calendar, desk calendar, journal or other means of periodically recording materials or notes recorded or kept by any person currently or previously affiliated with the Defendant regarding Plaintiff.

52. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the written, computer, video, emailed, audio or other statements of any kind taken or given by any person about Plaintiff and his claims.

53. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the digital version of any records that fall within the scope of any request herein but that do not exist in hard-copy or paper form.

54. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the investigative files concerning Plaintiff or Plaintiff's complaints.

55. The documents, electronically-stored information and tangible things in your possession, custody or control constituting the organizational chart for the Defendant for the period of Plaintiff's employment.

56. The documents, electronically-stored information and tangible things in your possession, custody or control constituting Defendant's policies, forms and procedures on discrimination and retaliation in the workplace.

57. The documents, electronically-stored information and tangible things in your possession, custody or control showing what insurance coverage, if any, Defendant maintains for employment practices liability insurance (EPLI) coverage or its equivalent that does or may cover Plaintiff's claims.

58. The documents, electronically-stored information and tangible things in your possession, custody or control constituting investigations, studies, reports, audits, documents or analyses regarding employment practices, including studies relating to employment discrimination at Defendant, conducted or completed on or after January 6, 2020, to the present.

59. The documents, electronically-stored information and tangible things in your possession, custody or control constituting internally or externally-generated documents, audits, reports or analyses that established, comment on, or revise, Defendant's employment practices.

60. The documents, electronically-stored information and tangible things in your possession, custody or control any document obtained by Defendant pursuant to any third-party subpoena.

61. The documents, electronically-stored information and tangible things in your possession, custody or control constituting surveillance documents relating to Plaintiff.

62. The documents, electronically-stored information and tangible things in your possession, custody or control used by Defendant in any deposition in this case.

63. The documents, electronically-stored information and tangible things in your possession, custody or control constituting audio, video, or still images, relating to Plaintiff, his employment, and his claims in this lawsuit.

64. The documents, electronically-stored information and tangible things in your possession,

custody or control constituting the employee phone listing or directory in effect on the last date of Plaintiff's employment.

65. The documents, electronically-stored information, and tangible things in your possession, custody and/or control constituting the personnel, disciplinary and every other file Defendant maintained on Plaintiff.

66. The documents, electronically-stored information, and tangible things in your possession, custody and/or control used to discipline, counsel or correct Plaintiff at any time during Plaintiff's employment.

Respectfully submitted

/s/ Marie A. Mattox

Marie A. Mattox [FBN: 0739685]
MARIE A. MATTOX, P. A.
203 North Gadsden Street
Tallahassee, FL 32301
Telephone:(850) 383-4800
Facsimile: (850) 383-4801

CERTIFICATE OF SERVICE

WE CERTIFY that a true copy of the foregoing has been served by Florida Courts E-Portal service only this 9th day of December 2024.

/s/ Marie A. Mattox
Marie A. Mattox